



March 15, 2025

Request for Comments: AI Action Plan
Attention: Faisal D'Souza
Office of Science and Technology Policy
Networking and Information Technology Research and Development
National Coordination Office
Sent via email to: [REDACTED]

INTRODUCTION TO AAP AND THE AI PERSPECTIVES OF U.S. PUBLISHERS

The Association of American Publishers (AAP) is the industry representative for book, journal, and education publishers in the United States on legal and policy issues, including, especially, the fast-moving opportunities and challenges relating to artificial intelligence.

As a point of pride, the American publishing industry predates the founding of the United States and has been integral to its leadership and growth on the world stage for more than two centuries of technological advancement and global distribution, from the printing press to the Internet.

Unsurprisingly, the publishing industry is excited about, investing in, and using AI tools at this new and significant moment for technology and content. At the same time, we are concerned about the equally critical, long-term vitality of the nation's copyright laws, which have long been the foundation of both creativity and innovation in this country.

We thank the White House for this opportunity to inform the President's AI Action Plan, which we believe can be a global example of how to protect and incentivize creators and innovators alike, not only by responsibly advancing the potential of AI, but also by advancing marketplace licensing for creative and intellectual content, based on strong copyright protections that will continue to promote partnerships between the publishing and technology sectors.

American publishers drive the most economically successful publishing market in the world, producing revenue of nearly 30 billion dollars annually in the United States alone.¹ We are a key part of the broader U.S. copyright industries, many of which produce news, education, and

¹ AAP StatShot Annual Report: Publishing Revenues Totaled \$29.9 Billion for 2023, ASS'N OF AM. PUBLISHERS (AAP) (Aug. 22, 2024), <https://publishers.org/news/aap-statshot-annual-report-publishing-revenues-totaled-29-9-billion-for-2023/>.

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entertainment content based on books, and which collectively add more than \$2.09 trillion in annual value to U.S. gross domestic product.²

America's intellectual property (IP) strength is what has led to leadership in AI and what will be needed to maintain that leadership. Advancing the nation's technological and economic agenda is not a zero-sum game. Dismantling copyright protections will result in race to the bottom that will not be in America's national interest.

In submitting these comments, we are proud to represent large commercial companies that invest in and publish works of fiction and nonfiction; digital companies that publish educational materials across thousands of subject areas; small, regional, and independent presses that reflect and serve local communities; and nonprofit research organizations that inform and advance critical developments in technology, science, and medicine.

THE U.S. AI ACTION PLAN SHOULD PRIORITIZE THE PROTECTION OF AMERICA'S GREATEST ASSET: INTELLECTUAL PROPERTY

As the White House develops its global-facing AI agenda, we applaud its stated goals of ensuring safety, advancing economic competitiveness, and incentivizing private sector innovation. Against this backdrop, we believe that protecting intellectual property should be a top priority for American AI leadership, including, specifically, as to Generative AI capabilities.

Here are the major themes and suggestions by which the White House can promote AI leadership and protect American intellectual property:

a. The United States can provide singular AI leadership by prioritizing intellectual property and AI together.

Global AI leadership goes hand in hand with global copyright leadership. Several countries have framed copyright protection as an impediment to AI development. These countries do not have the IP markets of the United States. By upholding U.S. intellectual property—including the copyright laws that protect and incentivize the ongoing investments of publishers and authors—the United States can signal to other nations that they must not weaken their own copyright laws. Were other countries to do so, they would be undermining American intellectual property exports and harming our creative industries. At stake are the livelihoods of all creators who have helped to make the United States the leading voice on intellectual property in the digital age and who are integral to the future success of lawful AI products.

² Robert Stoner and Jéssica Dutra, *Copyright Industries in the U.S. Economy: The 2024 Report*, INT'L INTELL. PROP. ALL. (IIPA) (February 2025), https://www.iipa.org/files/uploads/2025/02/IIPA-Copyright-Industries-in-the-U.S.-Economy-Report-2024_ONLINE_FINAL.pdf. Beyond these important economic contributions, an independent and thriving publishing industry supports the nation's political, intellectual, and cultural systems.

Publishers invest significant resources in bringing authors' works to market—taking risks on new works from new and existing authors. These investments are key to helping Generative AI technologies produce safe and accurate information and continue to promote American ideals.

b. Generative AI owes its success to the investments of publishers and authors: copyright litigation has been necessary to protect broad American interests and ideals globally, but the White House has an opportunity to promote partnerships between American companies.

It is now well-known that Generative AI was developed primarily by American technology companies using protected books and other media owned by American publishers and authors, regrettably without regard to the usual rules of copyright commerce that require and are realized through uncomplicated licensing frameworks. These licensing frameworks are the basis of billions of valuable transactions involving creative content across markets, representing high-quality digital catalogs of American authorship.

These unsanctioned activities by large tech companies have led to dozens of lawsuits involving copyrighted works, many of which focus on industrial scale infringement.³ Claims of infringement includes situations where tech companies violated basic paywalls and, worse, sourced their training materials from the unsafe troves of unscrupulous, notorious pirate sites. These sites include those that have long been the targets of American officials seeking to protect our intellectual property from criminals, as explained further below.

Publishers and tech companies have long been partners in American markets, and the disregard by tech companies toward content industries with respect to AI is unfortunate. Nevertheless, the importance of sustaining the U.S. creative industry cannot be overstated, a point that even technologists have sounded with alarm.⁴

³ See, e.g., *Master List: Copyright Lawsuits v. AI Companies in U.S.*, CHATGPT IS EATING THE WORLD (Aug. 27, 2024) (last updated Mar. 13, 2025), <https://chatgptiseatingtheworld.com/2024/08/27/master-list-of-lawsuits-v-ai-chatgpt-openai-microsoft-meta-midjourney-other-ai-cos>.

⁴ See, e.g., Ed Newton Rex, *How AI Models Steal Creative Works – and What to Do About It*, TED TALKS (Oct. 2024) https://www.ted.com/talks/ed_newton_rex_how_ai_models_steal_creative_work_and_what_to_do_about_it; *Statement on AI training*, <https://www.aitrainingstatement.org/> (statement on AI training from more than 40,000 creators, declaring that “[t]he unlicensed use of creative works for training generative AI is a major, unjust threat to the livelihoods of the people behind those works, and must not be permitted”); and Maria Pallante, *How AI is Generating Astronomical Profits by Trampling Authors and Publishers*, THE HILL (Apr. 26, 2024), <https://thehill.com/opinion/4624330-generative-ai-is-generating-astronomical-profits-by-trampling-authors-and-publishers/>.

American publishers inspire and inform the Nation's leaders, innovators, and future society. And, critically, they export American values, democratic ideals, and culture throughout the world. With respect to AI developers, publishers and authors are a much better, safer, and lawful partner for AI services and tools than pirate sites, and licensing is a far stronger, economically advantageous, and symbiotic goal than litigation.

c. A vibrant licensing market continues to evolve between publishers and AI developers, and the White House should embrace and encourage it.

Licensing helps feed copyright commerce worldwide for American creators. It incentivizes creativity and supports continued investment in new human-created works and the robust information economy we enjoy today. Licensing also produces critical benefits for AI developers: it incentivizes data collection and cleaning, it fuels investment in producing the next generation of high-quality training materials, and it enables startups and market entrants to compete on factors other than the ability to collect the most data.

Even as some tech companies have proposed policy positions that criticize licensing, they are simultaneously licensing works from publishers and other media companies. At the end of the day, publishers and other copyright owners are uniquely positioned to authorize AI developers to use accurate, high-quality catalogs of books, research journals, and other valuable intellectual property for training, materials that are free from damaging, unsafe elements of the dark web. Such licensing deals are a win for AI development and IP investment alike. Licensing is also a minor expense for AI companies that are now worth hundreds of billions of dollars.

New licensing and access agreements are constantly evolving. These include major deals between book publishers as well as news publishers, and some, but by no means all, have been reported in the press.⁵ Such agreements are a win-win for the United States. Professional and scholarly publishers already license their databases for text and data mining (TDM) uses,⁶ and have been leaders in forging AI deals for both commercial and non-commercial purposes.⁷

⁵ See, e.g., Pete Brown, *Platforms and Publishers: AI Partnership Tracker* (last updated Feb. 19, 2025), <https://petebrown.quarto.pub/pnp-ai-partnerships/>.

⁶ *Text and Data Mining (TDM)*, MACQUARIE UNIV., https://libguides.mq.edu.au/textdatamining/publisher_resources.

⁷ See *Generative AI Licensing Agreement Tracker*, ITHAKA S+R, <https://sr.ithaka.org/our-work/generative-ai-licensing-agreement-tracker/>.

d. The White House must reject Big Tech’s calls for sweeping exceptions to copyright, including a bloated fair use defense and an unworkable “opt-out” regime, which would dismantle centuries of copyright law and destroy evolving licensing markets and future IP investment.

The U.S. will not become the global leader in AI by abandoning the fundamental principles of free markets and property rights that have fueled its success. Copyright law secures the property rights of creators, allowing them to negotiate with others on mutually agreeable terms. As the Supreme Court has said, “By establishing a marketable right to the use of one’s expression, copyright supplies the economic incentive to create and disseminate ideas.”⁸ The ability of authors and publishers to *opt in* to new uses and new markets—or to decline them—is what makes a copyright a copyright.⁹

There is no precedent under fair use case law that supports the wholesale copying of millions of copyrighted works to build commercial services that compete in the same markets. Fair use allows courts to permit on a case-by-case basis narrow uses of copyrighted works that do not harm the copyright owner’s interests. It was never intended to sanction unvarnished theft for commercial technology products. Rather, the value chain starts with authors and publishers and requires permission, the way all other digital uses are transacted in the copyright marketplace today.

In contrast to the exclusive rights protected by copyright, an “opt-out” regime, also referred to as “rights reservation,” flips the time-tested logic of property on its head, allowing large tech companies to expropriate the value of copyright owners without consent unless they are told otherwise. The burden on copyright owners to notify AI developers of whether a copyrighted work may be used for training would be significant—not to mention the fact that it would be difficult, if not impossible, for authors and publishers to even know when their works are being used by AI developers in the first place. It is telling that some six years since the European Union adopted its *Directive on copyright and related rights in the digital single market*,¹⁰ which allows rightsholders to opt-out of a TDM exception, there is still no consensus regarding what qualifies

⁸ Harper & Row v. Nation Enterprises, 471 US 539, 558 (1985).

⁹ See Jim Milliot, *PW Talks with Maria Pallante, President & CEO of the Association of American Publishers*, Publishers Weekly (Jan. 3, 2025), <https://www.publishersweekly.com/pw/by-topic/industry-news/people/article/96788-pw-talks-with-maria-pallante-president-ceo-of-the-association-of-american-publishers.html> (“The best-case scenario for all of us would be for lawmakers to regulate AI by endorsing basic principles of copyright law, the most important of which is that authors and publishers have the right to control the terms of their intellectual property—including whether it may be used in the first place and, if so, under what conditions.”).

¹⁰ See [Directive \(EU\) 2019/790 of the European Parliament and of the Council of 17 April 2019 on copyright and related rights in the Digital Single Market and amending Directives 96/9/EC and 2001/29/EC \(Text with EEA relevance.\) Document 32019L0790](#).

as a valid opt-out mechanism. Such schemes are contrary to international treaties on copyright protection, which prohibit governments from burdening authors as to the enjoyment and control of their rights and equally prohibit sweeping exceptions for users.¹¹ In short, an “opt-out” regime would devalue intellectual property, stifle investment in creative industries, and disrupt quickly evolving licensing markets.

The White House should thus reject proposals that lets Big Tech ignore copyright protections either through unprecedented expansion of fair use or unworkable “opt-out” regimes. To further safeguard American competitiveness, it should urge other countries to follow our lead in upholding strong copyright protections and reject similar misguided proposals.

e. Pirate sites are a criminal scourge on IP investments of the United States; the White House should denounce AI developers who source their training materials from pirate sites and nullify incentives or benefits it might otherwise offer to AI developers.

Internet pirate sites have long been a scourge on American investments in intellectual property and often couple their IP theft with other criminal activities beyond the jurisdictional reach of U.S. law enforcement. It is well established that many foundational AI models have been trained on copyrighted works illicitly obtained from pirate repositories. Many of these pirate sites have long been identified by the U.S. government as notorious agents operating against U.S. interests¹² and targeted by U.S. law enforcement.¹³

As the White House drives AI leadership, the country has a pivotal opportunity to strengthen its opposition to pirate sites and denounce the use of pirate repositories to create AI training datasets. Such conduct is clearly illegal, risks proliferation by other countries, and serves as an obstacle to the private sector’s ability to innovate in AI.¹⁴

¹¹ WIPO Copyright Treaty art. 3, Dec. 20, 1996; Agreement on Trade-Related Aspects of Intellectual Property Rights art. 9(1), Apr. 15, 1994; Berne Convention for the Protection of Literary and Artistic Works art. 5(2), Sept. 9, 1886, as revised at Paris on July 24, 1971.

¹² Office of the U.S. Trade Representative, *USTR Releases 2024 Review of Notorious Markets for Counterfeiting and Piracy*, USTR.gov (Jan. 8, 2025), <https://ustr.gov/about-us/policy-offices/press-office/press-releases/2025/january/ustr-releases-2024-review-notorious-markets-counterfeiting-and-piracy>.

¹³ Kevin Schaul et al., *Inside the Secret List of Websites that Make AI like ChatGPT Sound Smart*, WASH. POST (Apr. 19, 2023), <https://www.washingtonpost.com/technology/interactive/2023/ai-chatbot-learning/>; Ernesto Van der Sar, *Z-Library Aftermath Reveals That the Feds Seized Dozens of Domain Names*, TorrentFreak (Nov. 7, 2022), <https://torrentfreak.com/z-library-aftermath-reveals-that-the-feds-seized-dozens-of-domain-names-221107/>.

¹⁴ Pirate sites and “shadow libraries” include Z-Library, Library Genesis (“LibGen”), and Anna’s Archive. See, e.g., Association of American Publishers (AAP), *2024 Special 301 Out-of-Cycle Review of Notorious Markets: Request for Comments* (Docket No. USTR-2024-0013) (Oct. 2, 2024), available at https://copyrightalliance.org/wp-content/uploads/2024/10/USTR-2024-0013-0005_attachment_1.pdf; Association of American Publishers (AAP), *Statement of the Association of American Publishers before the U.S. House of Representatives Committee on the*

Foreign AI companies have also used pirate repositories to expropriate the value of American copyrighted works. For example, DeepSeek researchers have publicly acknowledged that they used content from Anna's Archive (a site that aggregates records from major shadow libraries like Z-Library, Sci-Hub, and LibGen) to train at least one of its models.¹⁵ The U.S. should aggressively pursue actions against these sites and unfriendly pirate jurisdictions.

Pirate repositories compound the challenges already caused to copyright owners from infringement arising out of the unauthorized use of copyrighted works to train AI models. The availability of copyrighted works on the black market undermines the negotiating leverage of copyright owners in the new AI markets. Moreover, the illicit distribution of copyrighted works eliminates the ability of copyright owners to employ technological measures to mitigate unauthorized training, and the use of pirate repositories by mainstream companies improperly normalizes commercial-scale piracy, contrary to clear U.S. law enforcement objectives worldwide.

Recommendations

- Denounce the training of AI models on pirate sites and content and nullify any incentives or benefits that would otherwise flow to such AI developers from the U.S. government.
- Direct agencies to prohibit the procurement and use of AI models that have been trained on pirate sites and content when contracting for AI services.
- Employ law enforcement and trade tools to combat pirate repositories which allow foreign competitors to illegally expropriate American intellectual property.
- Direct the DOJ and FTC to use their unfair competition authority against companies that use and support pirate repositories for training.

Judiciary Subcommittee on Courts, Intellectual Property, and the Internet on "Digital Copyright Piracy: Protecting American Consumers, Workers, and Creators" (Dec. 13, 2023), available at <https://www.congress.gov/118/meeting/house/116671/documents/HHRG-118-JU03-20231213-SD001.pdf>; *Comment from Lui Simpson, Senior Vice President, Global Policy for the Association of American Publishers (AAP), on the DOJ's Recent Action in the Z Library Case*, ASS'N OF AM. PUBLISHERS (AAP) (Nov. 17, 2022), <https://publishers.org/news/comment-from-lui-simpson-senior-vice-president-global-policy-for-the-association-of-american-publishers-aap-on-the-doj-s-recent-action-in-the-z-library-case/>; *USTR Adopts AAP Recommendations for 2017 Notorious Market Report*, ASS'N OF AM. PUBLISHERS (AAP) (Jan. 12, 2018), <https://publishers.org/news/ustr-adopts-aap-recommendations-for-2017-notorious-market-report/>; *The Association of American Publishers Welcomes Major Judgment Against "Sci-Hub" Pirate Site*, ASS'N OF AM. PUBLISHERS (AAP) (June 22, 2017), <https://publishers.org/news/the-association-of-american-publishers-welcomes-major-judgment-against-sci-hub-pirate-site/>.

¹⁵ Haoyu Lu et al., *DeepSeek-VL : Towards Real-World Vision-Language Understanding* (Mar. 2024), available at <https://arxiv.org/pdf/2403.05525>.

f. Transparency as to training materials is essential to fair and safe AI policy, and the White House should work with Congress to prioritize U.S. needs and harmonize transparency requirements worldwide.

Transparency is an essential component for promoting accountability and building public trust in AI technologies and in the products and services into which AI technologies may be embedded. Specifically with respect to the use of copyrighted works to train Generative AI systems, accurate record-keeping and appropriate disclosure of copyrighted works incorporated into training datasets will provide rights holders with a mechanism for learning when their works have been used without authorization.

Such a requirement is not burdensome and lends itself to further innovation in the field of digital rights enterprises. Stakeholders in the AI space are already subject to reporting requirements for privacy laws, for instance, and do not dispute their ability to comply with the extensive existing reporting requirements for privacy laws.

Where licensing is occurring, and as licensing models evolve, accurate record keeping of how and which copyrighted works are used to train generative AI systems may provide the mechanism through which revenue sharing models may be defined.

A transparency requirement is also essential to determining the provenance of the content of the training datasets used to develop and train a generative AI model, which builds trust in the model's outputs. AI systems developed or trained on works derived or created from authorized sources are more likely to yield reliable outputs than works obtained from pirated or illegal sources. It is essential to trustworthy and reliable AI that developers utilize high quality, curated content from legitimate sources to create training corpora for their models. For example, in the case of AI training based on professional and scholarly communication, it is important that AI developers use only the Version of Record (VoR) of an article or report (appropriately licensed, of course). The VoR is the final, publisher-maintained article, updated, and archived continually in consultation with the author. Accepted manuscripts, pre-prints, or illegally uploaded text versions of the article may be subject to post-publication modification or retraction, and the use of the uncorrected version could create serious and cascading scientific or medical errors in AI generated outputs.

Beyond the economic impacts felt by industry, transparency requirements are necessary to verify that high quality, peer reviewed, vetted material are used to create training datasets given that AI technologies are integrated into applications that will impact the lives and well-being of individuals, whether financially, physically, mentally, academically, or professionally. Transparency requirements will lend assurance that the output of the generative AI system trained on such vetted content is both reliable and trustworthy.

Recommendations

- Lead global transparency requirements and harmonization.

- Direct federal agencies to include transparency requirements from AI developers when contracting for AI services.
- Lead and support legislative solutions requiring appropriate record-keeping and disclosure requirements from AI model developers.

CONCLUSION

On behalf of the American publishing industry, we thank the White House for inviting comments to inform its AI Action Plan, and we look forward to working with all parts of the Administration and the Congress to ensure that the United States remains a leader on both AI and IP investments and societal benefits.

Association of American Publishers

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